FILED: APPELLATE DIVISION - 2ND DEPT 05/15/2025 03:04 PM 2025-02099
NYSCEF DOC. NO. 12 RECEIVED NYSCEF: 05/15/2025

To Be Argued By: Gabriella Larios
Time Requested: 15 Minutes

New York Supreme Court

APPELLATE DIVISION – SECOND DEPARTMENT

LONG ISLAND ROLLER REBELS,

Plaintiff-Appellant,

-against-

COUNTY OF NASSAU, THE NASSAU COUNTY LEGISLATURE, BRUCE BLAKEMAN, in his official capacity as Nassau County Executive,

Defendants-Respondents.

REPLY BRIEF FOR PLAINTIFF-APPELLANT

Date: May 15, 2025
New York, New York

NEW YORK CIVIL LIBERTIES UNION FOUNDATION

Gabriella Larios
Robert Hodgson
Molly K. Biklen
125 Broad Street, 19th Floor
New York, New York 10004
Tel: (212) 607-3300
glarios@nyclu.org
rhodgson@nyclu.org
mbiklen@nyclu.org

Counsel for Plaintiff-Appellant

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PRELIMINARY STATEMENT

Nassau County has not—and cannot—meaningfully dispute the key legal and factual issues that are central to this appeal. Nassau County has repeatedly conceded that the Local Law categorically bars transgender women and girls from participating in women's and girls' sports at county-run facilities because of their transgender status and that the Local Law cannot be squared with the New York State Human Rights Law and Civil Rights Law, which explicitly prohibit discrimination on the basis of transgender status. That should decide this appeal.

In response to the Roller Rebels' appeal, Nassau County makes a series of confusing and meritless arguments that fundamentally misunderstand the law and establish that the Roller Rebels are likely to succeed on the merits. First, it makes the extraordinary and unsupported argument that it is "impossible" to comply with the Human Rights Law and Civil Rights Law because Title IX—the federal statute that prohibits sex discrimination in *educational institutions*—somehow "preempts" them and requires Nassau County to prohibit an adult women's recreational league with transgender members from roller skating in public parks. It does not. Title IX plainly does not apply to the permitting scheme at Nassau County parks, and even where Title IX does apply—in schools, not here—no court has held that it *requires* schools to exclude girls who are transgender or preempts state laws that explicitly protect them. Second, Nassau County misstates the relevant legal standard

applicable to the Roller Rebels' Human Rights Law and Civil Rights Law claims by offering "balancing test" *constitutional* defenses to an equal protection claim that the Roller Rebels did not make. Under the applicable *statutory* discrimination analysis, the sole question is whether the Local Law discriminates based on transgender status. It does, and Nassau County's own admissions and arguments confirm that. Third, Nassau County argues that the Local Law is entitled to a "very strong presumption of constitutionality," but that presumption is easily overcome because the Local Law is inconsistent with state antidiscrimination law in violation of the Municipal Home Rule Law. Finally, Nassau County erroneously asserts that this appeal is premature and ignores the relevant standard of review. Here, the lower court abused its discretion by making an error of law, and reversal is warranted.

Nassau County also does not meaningfully dispute the irreparable-harm and balancing-of-equities prongs of the preliminary injunction analysis. These factors weigh strongly in favor of the Roller Rebels' requested injunction because the Roller Rebels continue to suffer irreparable injuries, including categorical exclusion from equal access to public facilities while enduring ongoing unlawful discrimination, and Nassau County's enforcement of the Local Law goes against the public interest since it is barring women's teams with inclusive policies from accessing public spaces.

Accordingly, the Roller Rebels respectfully request that this Court reverse the Order and preliminarily enjoin the enforcement of the Local Law.

ARGUMENT

I. NASSAU COUNTY CONCEDES, FAILS TO DISPUTE, OR MISCONSTRUES THE KEY ISSUES THAT DECIDE THIS APPEAL.

A. There is No Dispute as to the Facts that Decide this Case Under the Human Rights Law, Civil Rights Law, and Municipal Home Rule Law.

Nassau County concedes that the Local Law's entire effect and purpose is to bar transgender women and girls "from participating in sporting events for biological women" (NYSCEF Doc No. 11 ["Respondents' Br."] at 11; *see also id.* at 18 [discussing opposition to allowing "transgender females to compete" in women's sports]). Yet Nassau County offers no plausible explanation for how a law that facially discriminates on the basis of transgender status can be squared with state laws that prohibit such discrimination. It cannot.

Nassau County does not dispute that the passage of the Gender Expression Non-Discrimination Act ("GENDA") in 2019 added explicit protections for transgender New Yorkers to the Human Rights Law and the Civil Rights Law (Executive Law §§ 292, 296; CRL § 40-c) and specifically defined "gender identity" to include "a person's actual or perceived gender-related identity . . . *regardless of the sex assigned to that person at birth*, including, but not limited to, the status of being transgender" (Executive Law § 292[35] [emphasis added]). Nassau County entirely fails to address or engage with the forms of discrimination prohibited by the plain text of state law post-GENDA (*see generally* Respondents' Br.). It also does

not dispute—because it cannot—that the Local Law was issued against a backdrop of clear state statutory protections, regulations, and guidance prohibiting discrimination on the basis of gender identity in public accommodations, like publicly-run athletic facilities. Nor does it dispute that, prior to the issuance of the Local Law, participation in sports at public facilities in Nassau County had for years been governed by those same statewide laws without incident (*compare* Respondents' Br. *with* NYSCEF Doc No. 5 ["Appellant's Br."] at 9–10, 14–26).

In fact, in justifying the Local Law and its predecessor Executive Order, Nassau County has repeatedly conceded that the Local Law violates the Human Rights Law and Civil Rights Law (*see e.g.* R474 [Answer at ¶ 91] [arguing federal law "precludes and prohibits enforcement of the New York Executive Law under the facts presented in this litigation"]; R561 [Answer in *Long Island Roller Rebels v Bruce Blakeman et al.*] [arguing that "as applied to this narrow context and the Executive Order, the State Human Rights Laws . . . should be declared invalid and its enforcement should be enjoined"]; *Blakeman v James*, 2024 WL 3201671, at *4 [EDNY Apr. 4, 2024] [describing Nassau County as "alleg[ing] that the New York Human Rights Law 'is unconstitutional' as applied to the Executive Order"]). Nassau County's "federal preemption" arguments—which lack merit (*see infra* at 9–12)—are all premised on a concession that the Local Law violates state law; if it did

not, there would be nothing to preempt and no need to enjoin enforcement of the Human Rights Law or declare it "invalid."

Finally, while Nassau County asserts without any citation or explanation that "Plaintiff has been denied nothing, yet" (Respondents' Br. at 6), this is at odds with the uncontested record. The Roller Rebels submitted a permit request to use various county-run athletic facilities for reoccurring events beginning on August 8, 2024 (*see* R414–415). With the Local Law in place (and while litigating this action), Nassau County has now let 27 of those dates pass without acting on the application, meaning that the Roller Rebels were denied permits on all requested dates that have now passed. These constructive denials are also consistent with Nassau County's position in this case that that the Local Law prohibits it from granting the Roller Rebels a permit (*see* R472 [Answer] [admitting that transgender women—which mischaracterizes as "biological men"—"participating in biological women activities will violate the terms of the local law"]; *see also* R173 [Order in *Long Island Roller Rebels v Blakeman*] [noting that Nassau County "admitted at the [preliminary injunction] hearing that Nassau County Department of Parks will deny the [Roller Rebels'] request for a permit"]). To the extent Nassau County is relying on the fact that it has refused to issue a *formal* "denial" letter to suggest the Roller Rebels have been "denied nothing," this clumsy attempt at sleight-of-hand is both legally irrelevant and a clear indication why preliminary relief is appropriate. There is no

dispute the Roller Rebels—and other women's teams with transgender members or inclusive policies—remain categorically barred from reserving Nassau County facilities pursuant to the Local Law.

B. Under the Standard of Review Applicable to this Appeal—Which Nassau County Misconstrues or Ignores—Reversal is Warranted.

In a section titled "Limits of Appeal," Nassau County fails to cite any law, fails to identify a proposed standard of review, and instead asserts with no support that the "instant appeal is . . . premature" (Respondents' Br. at 5). Nassau County is wrong.

The applicable standard of review is abuse of discretion (*see Doe v Axelrod*, 73 NY2d 748, 750 [1988]), and here, the Roller Rebels can establish that the lower court abused its discretion in denying their preliminary injunction request on several independent grounds. A lower court abuses its discretion when it makes an error of law or fails "to set forth specific findings with respect to the tripartite test for injunctive relief" (*see Matter of Merscorp, Inc. v Romaine*, 295 AD2d 431, 432–33 [2d Dept 2002]; *Samaha v Brooklyn Bridge Park Corp.*, 230 AD3d 608, 609 [2d Dept 2024]; *Koon v United States*, 518 US 81, 100 [1996]) Both are present here (*see* Appellant's Br. at 13–36).

Indeed, appellate courts regularly review and reverse lower court orders denying preliminary injunction requests and enjoin challenged laws at this stage of litigation (*see e.g. Dougal v Suffolk County*, 87 AD2d 897, 897 [2d Dept 1982]

[reversing order, granting preliminary injunction, and enjoining enforcement of local laws]; *Niagara Recycling, Inc. v Town of Niagara*, 83 AD2d 316, 334–35 [4th Dept 1981] [reversing lower court's denial of preliminary injunction and enjoining local law]; *Time Square Books, Inc. v City of Rochester*, 223 AD2d 270, 278–79 [4th Dept 1996] [reversing lower court's denial of preliminary injunction and ordering preliminary injunction in challenge to local law]).

Nassau County also makes the confusing and unsupported assertion that this appeal is "premature" because "[d]iscovery has not commenced" (Respondents' Br. at 5). Preliminary injunctive relief is granted "upon undisputed facts found in the moving papers" (*Anastasi v Majopon Realty Corp*., 181 AD2d 706, 707 [2d Dept 1992]). In support of their motion, the Roller Rebels submitted a factual record that included multiple sworn affirmations and sixteen exhibits (*see* R025–419, R511–564). In response, Nassau County did not create a factual record and did not submit a single affirmation or exhibit (*see* R466–492).

Discovery is not a prerequisite to a preliminary injunction because "[a]t this stage of the litigation . . . the issue is one of probabilities, with the ultimate determination of the merits to be made at trial or summary judgment after development of a full record" (McKinney's Practice Commentaries to CPLR 6312 [citing *J.A. Preston Corp. v Fabrication Enterprises, Inc*., 68 NY2d 397, 406 [1986]]). CPLR 6312 provides that entitlement to a preliminary injunction can be

established "by affidavit and such other evidence" and that "evidence sufficient to raise an issue of fact shall not in itself be grounds for denial of the motion." CPLR 6312 therefore contemplates that further factual development through discovery may occur at a later stage in litigation. In this case, there is no meaningful dispute as to the facts at issue (*see supra* at 3–6), and the Local Law on its face categorically bars transgender women from participating in women's sports (*see infra* at 13–18), making discovery unnecessary at any stage.

Ultimately, under any standard, and at any stage, the Roller Rebels are entitled to the requested relief because Nassau County does not meaningfully dispute the key facts or issues that decide this case, and it otherwise misconstrues the applicable legal standards.

II. THE ROLLER REBELS ARE LIKELY TO SUCCEED ON THE MERITS.

In response to the Roller Rebels' clear articulation of why the Local Law is facially unlawful under the Human Rights Law and Civil Rights Law, Nassau County fails to engage with the statutory text, case law, regulations, and guidance that govern and resolve this case. Instead, it makes unsupported assertions that Title IX preempts the Human Rights Law and Civil Rights Law (even though Title IX is inapplicable here). And, despite the Roller Rebels bringing only statutory discrimination claims and no constitutional claims, Nassau County confusingly addresses a constitutional equal protection argument that the Roller Rebels did not

make and incorrectly asserts that Roller Rebels cannot establish the Local Law's "unconstitutionality." Each of these arguments fails. For the reasons below, the Roller Rebels are likely to succeed on the merits of their Human Rights Law, Civil Rights Law, and Municipal Home Rule Law claims.

A. Title IX Is Inapplicable Here, But Even If It Applied, It Would Not Require Discrimination Against Transgender Women.

Nassau County argues that Title IX's prohibitions on sex discrimination in education preempt state antidiscrimination law and require a municipality to enact a law prohibiting an adult women's recreational league that includes transgender women from playing women's sports at public parks (*see* Respondents' Br. at 2–4, 11–19). But these arguments find no support in the law and must be rejected.

First, and dispositive here: Title IX does not apply. Title IX's prohibitions on sex discrimination are limited to "education" programs or activities (20 USC § 1681), and the permitting of Nassau County parks to members of the public is not an educational activity. Indeed, on this precise issue, the federal court in *Blakeman v James* held that because Title IX only "applies to educational institutions . . . [it] does not apply to any sporting and athletic endeavors on Nassau County Parks property" (2024 WL 3201671, at *14). And Nassau County itself has conceded that Title IX is inapplicable in this context numerous times (*see e.g.* R521 [ECF 10-5 in *Blakeman v James*] ["Title IX is not applicable to Nassau County as it is not

considered an educational institution"]; R552 [Answer in *Long Island Roller Rebels v Blakeman*] ["Title IX is not directly applicable to the County"]).

Ignoring these authorities and its own concessions, Nassau County has reversed itself and asserted that Title IX "applies to Nassau County" without limitation because it "receives funds from a number of Federal sources" (Respondents' Br. at 2–3, n 1). While federal funding is of course a prerequisite for Title IX to have any effect, the statute is explicitly limited to discrimination in "education program[s] and activit[ies]" and by "educational institutions" (20 USC § 1681; *see also Cannon v Univ. of Chicago*, 441 US 677, 696 n 17 [1979] ["Title IX is applicable only to certain educational institutions receiving federal financial assistance"]). Title IX defines "educational institution" as "any public or private preschool, elementary, or secondary school, or any institution of vocational, professional, or higher education" (20 USC § 1681[c]). Nassau County offers no authority—because there is none—for its argument that Title IX governs the use of county parks and athletic facilities by members of the public. Here, Nassau County's arguments are particularly misplaced because the Roller Rebels are an adult recreational league; Nassau County does not even attempt to explain how their park permitting scheme could possibly be considered part of an "education" program. It is not.

Second, even if Title IX were applicable here, there is no conflict and thus no preemption. Nassau County's arguments conflate two different questions: (a) whether Title IX *allows* schools to exclude girls who are transgender from girls' teams, and (b) whether Title IX *requires* schools to exclude them. "Holding that a school need not accommodate students who are transgender according to their gender identity in order to comply with Title IX is qualitatively different than holding that a school cannot do so" (*Soule v Conn. Ass'n of Sch., Inc.*, 90 F4th 34, 74 n 5 [2d Cir 2023] [en banc] [Perez, J., concurring in part and dissenting in part]). Although most federal courts have held that Title IX protects the rights of girls who are transgender to participate on girls' teams,[1] a minority of courts have held that Title IX allows schools to exclude girls who are transgender (*see* Respondents' Br. at 3–4 [citing *D.N. v DeSantis*, 701 F Supp 3d 1244 [SD Fla 2023], and *Adams v School Bd. of St. Johns County*, 57 F4th 791 [11th Cir 2022]]).[2] But no court has held that

[1] *See B.P.J. by Jackson v W. Va. State Bd. of Educ.*, 98 F4th 542 [4th Cir 2024], *cert denied*, 145 S Ct 568 [2024] (sports); *A.C. by M.C. v Metro. Sch. Dist. of Martinsville*, 75 F4th 760 [7th Cir 2023], *cert denied*, 144 S Ct 683 [2024] (restroom); *Grimm v Gloucester Cnty. Sch. Bd.*, 972 F3d 586, 619 [4th Cir 2020] (restroom); *Doe v Horne*, 683 F Supp 3d 950, 974 [D Ariz 2023], *affd*, No. 23-16026 [9th Cir Sept. 9, 2024] (sports); *A.M. by E.M. v Indianapolis Pub. Schs.*, 617 F Supp 3d 950, 955 [SD Ind 2022], *appeal dismissed*, No. 22-2332, 2023 WL 371646 [7th Cir Jan. 19, 2023] (sports).

[2] In *D.N.* and *Adams*, transgender students brought lawsuits affirmatively arguing that Title IX required schools to treat them consistent with their gender identity where there were no state-level gender identity discrimination protections. Neither case stands for the proposition that Title IX preempts state-level gender identity protections or otherwise *requires* an entity to exclude transgender people from programs consistent with their gender identity. Nassau County's citations to two Texas federal court decisions in ongoing litigation regarding the U.S. Department of

Title IX *requires* schools to exclude girls who are transgender or preempts state laws that explicitly protect them.

For example, the Sixth Circuit held in *Tennessee v Dep't of Educ.* (104 F4th 577 [6th Cir 2024]) that Title IX's athletics and restroom regulations *allowed* schools to separate athletics and restrooms "in accordance with one's biological sex without accommodating gender identity" (*Tennessee*, 104 F4th at 610; *contra B.P.J.*, 98 F4th at 564). But the court also explained that they "do not require" schools to do so (*Tennessee*, 104 F4th 610). "Schools could, for example . . . separate programs and facilities by gender identity" (*id.* at 610–11). Nassau County's "interpretation of Title IX" as requiring the exclusion of girls who are transgender is one that no circuit court "has ever adopted" (*Soule,* 90 F4th at 66 [Nathan, J., concurring]). Even if Title IX were applicable here (which it is not), this Court should not accept Nassau County's meritless arguments that Title IX preempts state antidiscrimination law or otherwise affirmatively *requires* entities to exclude transgender women and girls.

Education's Title IX regulations also do not support these sweeping propositions (*see* Respondents' Br. at 22–23 [citing *Carroll Ind. School Dist. v United States Dept. of Educ*., No. 4:24-cv-00461-O, 2024 WL 3381901 [ND Tex July 11, 2024] and *Texas v United States*, No. 2:24-cv-86-Z, 2024 WL 3405342 [ND Tex July 11, 2024]]). While *Carroll* and *Texas* found that Title IX does not affirmatively require transgender students be allowed to participate in activities consistent with their gender identity, these cases did not consider or decide whether state-level statutory protections for transgender people violate Title IX.

B. Nassau County Erroneously Relies on a Constitutional Equal Protection Standard Instead of the Applicable Statutory Standard.

Nassau County cites *Hernandez v Robles* (7 NY3d 338 [2006]), a case brought under the Equal Protection Clause of the New York Constitution and involving no statutory claims, for the proposition that a policy that "discriminates based on gender identity" will be "reviewed under an intermediate level of scrutiny—meaning that [it] will be sustained if 'substantially related to the achievement of an important governmental objective'" (Respondents' Br. at 12). But that is not accurate. The two-part "intermediate scrutiny" analysis described in *Hernandez* (*First*: is there discrimination? *Second*: can that discrimination be justified by the government?) only applies to constitutional equal protection claims, which the Roller Rebels did not bring (*see* R021 [complaint] [asserting claims for relief under New York Executive Law § 296, New York Civil Rights Law § 40-c, and New York Municipal Home Rule Law § 10]). Under the *statutory* discrimination analysis applicable here, there is no second part; the sole question is whether the Local Law discriminates based on transgender status (*see* New York Executive Law § 296[2][a]; *Union Free School Dist. No. 6 of Towns of Islip & Smithtown v NYS Human Rights Appeal Bd.*, 35 NY2d 371, 376 [1974] [determining whether challenged policies "transgressed [Human Rights Law's] statutory proscription," which "expressly forbid[s] discrimination based on sex"]). It does, which ends the

inquiry and confirms that it violates the Human Rights Law and Civil Rights Law.[3]

Indeed, the Court of Appeals has made clear in evaluating claims under the Human Rights Law,[4] "the test to be applied here is not the constitutional standard under the equal protection clause, but the statutory standard of the Human Rights Law" (*Union Free School Dist. No. 6 of Towns of Islip & Smithtown*, 35 NY2d at 377–78). This is particularly relevant because the Human Rights Law's protections extend *beyond* the Equal Protection Clause and "what the Constitution does not forbid may nonetheless be proscribed by statute" (*id.*; *see also Regan v City of Geneva*, 136 AD3d 1423, 1425 [4th Dept 2016] [holding that Human Rights Law discrimination claim succeeded where equal protection claim failed]). Indeed, by engaging in this equal protection analysis, Nassau County concedes that the Local Law facially discriminates against transgender women and girls, since "heightened scrutiny" would be triggered only by a threshold finding that its policy is facially discriminatory (*see Hernandez*, 7 NY3d at 364 [noting the "heightened scrutiny" balancing test would only be triggered by a policy that facially "discriminates on the

[3] Like *Hernandez*, Nassau County's citations to *United States v Virginia* (518 US 515, 533 [1996]), *Tuan Anh Nguyen v INS* (533 US 53, 70 [2001]), and *Ballard v United States* (329 US 187, 193 [1946]) (*see* Respondents' Br. at 16–18)—all equal protection cases—are inapposite because the Roller Rebels did not assert an equal protection claim.

[4] Human Rights Law and Civil Rights Law discrimination claims are evaluated under the same standard (*see Gordon v PL Long Beach, LLC*, 74 AD3d 880, 885 [2d Dept 2010]).

basis of sex"]).[5]

In this case, where discrimination is statutorily *prohibited*, Nassau County is not permitted to "justify" its discrimination with a "governmental objective" because a finding of discrimination is independently sufficient to find that the Local Law violates the Human Rights Law and Civil Rights Law (*see* Executive Law §§ 292[9], 296[2]; CRL § 40-c). Here, the Local Law violates the plain text of the Human Rights Law and Civil Rights Law by discriminating on the basis of "the status of being transgender" (Executive Law § 292[35]). It categorically bars only *transgender* women and *transgender* girls from participating in or having access to the women's and girls' activities that their cisgender peers have access to—solely on the basis of transgender status. Under this straightforward application of the statutory text, the Local Law cannot stand, and Nassau County fails to put forth any arguments to the contrary.

Rather than focus on the central question of whether the Local Law's categorical exclusion of transgender women and girls from women's and girls'

[5] To be clear, the Roller Rebels would succeed on an equal protection claim had they brought one—there was simply no reason to do so given GENDA's clear statutory protections (*see e.g. Hecox v Little*, 104 F4th 1061, 1080–89 [9th Cir 2024], *as amended* [June 14, 2024] [holding ban discriminated on the basis of transgender status, and was not "substantially related" to "an important governmental objective"]; *Doe v Horne*, 683 F Supp 3d 950, 973–74 [D Ariz 2023] [granting preliminary injunction because ban was not "substantially related to the legitimate goals of ensuring equal opportunities for girls to play sports and to prevent safety risks" and finding it "fails even under the rational basis test because it is not related to any important government interest"], *affd*, No. 23-16026 [9th Cir Sept. 9, 2024]).

sports violates the Human Rights Law and Civil Rights Law, Nassau County seeks to distract by defending the general separation of men's and women's athletics (*see* Respondents' Br. at 16–19). The general separation of teams for men and women is not at issue in this case, so Nassau County's reliance on *O'Connor v Board of Education* (449 US 1301 [1980])—which noted in passing that separating girls' and boys' sports teams is permissible—is misplaced. The Roller Rebels do not challenge the separation of women's and men's sports; rather they challenge Nassau County's rule singling out transgender women and girls for exclusion from public facilities based on their transgender status.

C. Nassau County's Other Human Rights Law Arguments Are Unavailing.

Nassau County's remaining contentions regarding the Human Rights Law are without merit. The only precedent Nassau County relies on to argue that its classifications "based on biological sex" are nondiscriminatory under the Human Rights Law is *Hispanic Aids Forum v Estate of Bruno* (16 AD3d 294 [1st Dept 2005]), a First Department case that interpreted a prior version of the Human Rights Law that lacked explicit protections for "gender identity." *Hispanic Aids Forum*'s holding that transgender individuals could be prevented from using restrooms in accordance with their gender identity was abrogated in 2019 by the plain text of GENDA—which added an explicit prohibition on discrimination based on the "status of being transgender," specifically noting that this prohibition applies

"regardless of the sex assigned to that person at birth" (Executive Law § 292[35])—and subsequent Division of Human Rights guidance, which makes clear that the discrimination found acceptable in *Hispanic Aids Forum* is considered unlawful discrimination under the amended statute (*see* R150 [DHR Guidance] ["Denying the use of restrooms or other facilities consistent with a person's gender identity" is unlawful discrimination on the basis of gender identity]).

Hispanic Aids Forum also cannot be squared with this Court's more recent precedent that has made clear that misclassifying a transgender woman as "male" and denying her access to programs and activities for women is a form of prohibited discrimination under these laws. In *Advanced Recovery, Inc. v Fuller* (162 AD3d 659 [2d Dept 2018]), this Court affirmed a Division of Human Rights determination (*see* R376–403) finding that a transgender woman had been discriminated against under the Human Rights Law when her employment was terminated after she requested to be treated as a woman in all respects, including by being allowed full access to the women's restroom and to dress as a woman at work. To the extent that there is any conflict between *Fuller* and *Hispanic Aids Forum*, this Court should follow its own precedent (*see Matter of State Farm Mut. Auto. Ins. Co. v Fitzgerald*, 25 NY3d 799, 819–20 [2015]).

Moreover, even within the First Department, courts have declined to extend *Hispanic Aids Forum* to other contexts involving sex-separated facilities and

programming. (*See e.g. Wilson v Phoenix House*, 42 Misc 3d 677, 681 [Sup Ct, NY County 2013] [finding Human rights Law violation where transgender woman was denied women's housing and programming after being classified as "biologically male"]; *Doe v City of New York*, 42 Misc3d 502, 507 [Sup Ct, NY County 2013] [finding Human Rights Law violation when city agency misclassified transgender woman as a "male"]). Nassau County entirely fails to engage with or distinguish these cases (*compare* Respondents' Br. *with* Appellant's Br. at 19–20).

Even if *Hispanic Aids Forum* had not been abrogated by GENDA and intervening case law, Nassau County's reliance on it is also misplaced because the Local Law selectively excludes transgender women and girls, but not transgender men and boys, from accessing public facilities when they belong to sports teams that align with their gender identity (*see* Appellant's Br. at 21). In *Hispanic Aids Forum*, the court considered a policy that excluded *all* "biological males" and "biological females" from restrooms "on the same basis . . .their biological sexual assignment" (16 AD3d at 299) and specifically noted that the Human Rights Law might be triggered if the plaintiffs had alleged that "transgender individuals were selectively excluded" (*id*.). Here, Nassau County has not created a rule that excludes all "biologically female" or "biologically male" individuals from participation in sports on the same basis—it selectively excludes transgender women and girls and is *not* "applied uniformly" to men and women (*id*).

D. Any Presumption of Constitutionality Afforded to the Local Law is Easily Overcome Because It Conflicts with State Law.

Nassau County's discussion of the "very strong presumption of constitutionality" afforded to legislative enactments (*see* Respondents' Br. at 5–6) "is irrelevant" in this case (*New York City Health and Hosps. Corp. v Council of City of New York*, 303 AD2d 69, 75 [1st Dept 2003]).[6] A local law's "presumption of validity . . . has no bearing on the [Municipal Home Rule Law] argument" (*id*). To the extent that the Local Law is entitled to a "presumption of constitutionality," that presumption is easily overcome here because the Local Law is inconsistent with the Human Rights Law and Civil Rights Law in violation of Section 10 of the Municipal Home Rule Law (*see* Municipal Home Rule Law § 10(1)[i]).

Section 10 of the Municipal Home Rule Law prohibits a local law from being "inconsistent with any general law" of the state (*see* Municipal Home Rule Law § 10(1)[i]). A local law is considered to be inconsistent with state law where the local law "prohibits conduct which the State law . . . considers acceptable" or "imposes additional restrictions on rights granted by State law" (*Jancyn Mfg. Corp. v Suffolk*

[6] These arguments are also unavailing as the Roller Rebels do not challenge the constitutionality of the Local Law. All of the of the cases cited by Nassau County were constitutional challenges to legislative enactments and none addressed the question at issue in this case: whether a local law is inconsistent with state law in violation of the Municipal Home Rule Law (*see* Respondents' Br. at 5–6 [citing *Am. Ind. Paper Mills Supply Co., Inc. v County of Westchester*, 65 AD3d 1173 [2d Dept 2009], *Jewish Reconstructionist Synagogue of N. Shore, Inc. v Inc. Vil. of Roslyn Harbor*, 40 NY2d 158 [1976], and *Lighthouse Shores, Inc. v Town of Islip*, 41 NY2d 7 [1976]]).

County, 71 NY2d 91, 97 [1987]). If inconsistent local laws were "permitted to operate," they would "inhibit the operation of the State's general law and thereby thwart the operation of the State's overriding policy concerns" (*id*). In *Matter of Baldwin Union Free School Dist. v County of Nassau* (22 NY3d 606 [2014]), the Court of Appeals acknowledged that local laws "carry a strong presumption of constitutionality" (*id.* at 621) but nonetheless declared a Nassau County local law "unconstitutional, invalid, unenforceable and void" because it violated the Municipal Home Rule Law and the New York State Constitution (*id.* at 628; *see also Urstadt v Walsh*, 67 Misc 2d 729, 731 [Sup Ct, NY County 1971] ["The inconsistency of a local law must be subservient to the state statute"]). And this Court regularly invalidates local laws in actions under the Municipal Home Rule Law where they are inconsistent with state law (*see e.g. McGrath v Suffolk County*, 232 AD3d 879, 885 [2d Dept 2024] [enjoining defendants from violating state law, and declaring that enforcement of county code provision was "ultra vires, preempted, void, or otherwise illegal"]; *Woodbury Hgts. Estates Water Co., Inc. v Vil. of Woodbury*, 111 AD3d 699, 704 [2d Dept 2013] [declaring that the "Local Law was preempted by state law and, therefore, invalid"]; *ILC Data Device Corp. v County of Suffolk*, 182 AD2d 293, 297 [2d Dept 1992] [affirming order "striking down" local law]).

Here, the Local Law restricts the rights of transgender women and girls "granted by" the Human Rights Law and Civil Rights Law and it prohibits transgender women and girls from participating in women's and girls' sports teams, which state law "considers acceptable" (*see Jancyn Mfg. Corp.*, 71 NY2d at 97; *see also supra* at 13–18). The Local Law also "thwarts the operation" of New York State's "long-recognized, substantial interest in eradicating discrimination" through the Human Rights Law (*Matter of Gifford v McCarthy*, 137 AD3d 30, 40 [3d Dept 2016]; *see also Matter of New York City Tr. Auth. v State Div. of Human Rights*, 78 NY2d 207, 216 [1991] [noting the "extremely strong statutory policy of eliminating discrimination" embodied by the Human Rights Law]; *Batavia Lodge No. 196, Loyal Order of Moose v New York State Div. of Human Rights*, 35 NY2d 143, 145 [1974] [discussing the "strength and importance of the State's policy in combating discrimination"]).

For all these reasons, the Roller Rebels are likely to succeed on the merits.

III. NASSAU COUNTY DOES NOT MEANINGFULLY DISPUTE IRREPARABLE INJURY OR THE BALANCE OF EQUITIES.

Nassau County argues that the Roller Rebels do not identify any irreparable injury because they could use county facilities if they designated themselves as a "co-ed" league and otherwise have access to private facilities (*see* Respondents' Br. at 22). But these arguments are incorrect and largely ignore the numerous injuries the Roller Rebels articulate (*see* Appellants' Br. at 26–33). First, the factual record

in this case is undisputed—Nassau County did not introduce any facts in response to the Roller Rebels' sworn submissions (*compare* NYSCEF Doc No. 2–3 [Record on Appeal] *with* R406–R419 [sworn affirmation of Amanda Urena and affidavit of Trisha Newman]). While Nassau County now makes an unfounded argument that "Plaintiff has been denied nothing, yet" (Respondents' Br. at 6), it fails to refute the record evidence establishing that the Roller Rebels' pending permit request has been constructively denied and cannot be granted pursuant to the Local Law (*see supra* at 5–6). Nassau County also does not dispute that the Roller Rebels face dignitary harms associated with an ongoing violation of antidiscrimination law (*see Gifford*, 137 AD3d at 40); or that compliance with the Local Law runs afoul of Roller Rebels' policies and multiple state laws designed to maintain the confidentiality of a person's sex assigned at birth (*see* Appellants' Br. at 31–33). Second, Nassau County's suggestion that the Local Law merely imposes "a very limited restriction" (Respondents' Br. at 11) by forcing transgender women and girls to participate in men's or co-ed teams ignores the factual record: the Roller Rebels, as a member of the Women's Flat Track Derby Association, are a women's league and cannot misrepresent themselves as "co-ed" (*see* R411 [Urena Affirmation]; R416–417 [Newman Affidavit]); and forcing them to designate their league as "co-ed" because it includes transgender women would be a significant injury in and of itself (*see Doe v Horne*, 683 F Supp 3d at 968–69 ["Participating in sports on teams that contradict

one's gender identity 'is equivalent to gender identity conversion efforts, which every major medical association has found to be dangerous and unethical.'"). Third, the undisputed factual record demonstrates that the Roller Rebels need additional facilities for practices, games, and events because the private facilities they currently use do not meet their needs as a team; without an injunction, they cannot access public space that would permit them to succeed and grow as a league, and they will experience ongoing injury for as long as Nassau County's denials last (*see* R408–409 [Urena Affirmation]).

The balance of equities also weighs overwhelmingly in favor of the requested injunction as it would maintain the status quo that existed for many years prior to the Local Law's enactment. Nassau County presents an alternate history that mischaracterizes the status quo and ignores the enactment of GENDA and pre-existing regulations, guidance, and case law that permitted the inclusion of transgender women and girls in women's and girls' sports teams across New York for decades (*see* Respondents' Br. at 21–23). Throughout that time, Nassau County did not create participation rules for individual teams and leagues—individual teams and leagues enacted their own clear internal participation policies, and participants understood and agreed to these policies prior to joining (*see* R407 [Urena Affirmation]). The Local Law now upsets this previously stable status quo by inserting an illegal and confusing restriction on accessing public facilities. Returning

to the permitting scheme in place prior to the enactment of the Local Law furthers the "enormous public interests involved" in advancing the "public policy of this State" (*Seitzman v Hudson River Assocs*., 126 AD2d 211, 214 [1st Dept 1987]) as articulated in GENDA.

On this issue, Nassau County has invoked a general interest in "ensuring women's and girls' places in sports" (*see* Respondents' Br. at 22), but the Roller Rebels share this interest, and indeed an injunction would *further* the public interest in ensuring women's teams and leagues that have created their own inclusive policies are not barred from accessing to public facilities. Nassau County's argument rings particularly hollow because it is *Nassau's Local Law that is acting to bar a women's team from accessing much-needed facilities* where the undisputed record shows that a comparable *men*'s team would be permitted to access facilities. And Nassau County has repeatedly failed to point to a single example of harm that flowed from the pre-existing status quo allowing transgender women to participate in women's sports. Indeed, in *Blakeman v James,* the federal court considered the same policy at issue here and concluded that rescinding the policy would not harm *any* woman or girl in Nassau County (2024 WL 3201671 at *19). Additionally, by conceding that it would permit the Roller Rebels to access the contested facilities if they marked "co-ed" on their application (*see* Respondents' Br. at 22), Nassau County

acknowledges no harm will flow from an injunction allowing transgender women to play sports alongside cisgender women in this case.

For all these reasons, the irreparable-harm and balancing-of-equities prongs of the preliminary injunction analysis weigh strongly in favor of the requested injunction.

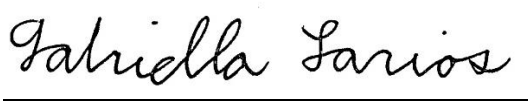
CONCLUSION

For the foregoing reasons, the Roller Rebels respectfully request that this Court reverse the Order and enjoin the enforcement of the Local Law during the pendency of the proceeding.

Dated: May 15, 2025
New York, New York

Respectfully Submitted,

NEW YORK CIVIL LIBERTIES UNION FOUNDATION



Gabriella Larios
Robert Hodgson
Molly K. Biklen
125 Broad Street, 19th Floor
New York, N.Y. 10004
Tel: (212) 607-3300
glarios@nyclu.org
rhodgson@nyclu.org
mbiklen@nyclu.org

Counsel for Plaintiff-Appellant

PRINTING SPECIFICATION STATEMENT

This computer generated brief was prepared using a proportionally spaced typeface.

Name of typeface: Times New Roman

Point size: 14 Points

Line spacing: Double

The total number of words in the brief, inclusive of point headings and footnotes and exclusive of pages containing the table of contents, table of authorities, proof of service, printing specification statement, or any authorized addendum is **6,228**.

Dated: May 15, 2025
New York, New York

Gabriella Larios

Gabriella Larios

Counsel for Plaintiff-Appellant